

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1778 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Kyle Hilbert

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED COMMITTEE

SUBSTITUTE

FOR ENGROSSED

SENATE BILL NO. 1778

By: Pugh of the Senate

and

Hilbert, Staires, and
Hasenbeck of the House

PROPOSED COMMITTEE SUBSTITUTE

An Act relating to the Strong Readers Act; amending 70 O.S. 2021, Section 1210.508A, as amended by Section 3, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2025, Section 1210.508A), which relates to the Strong Readers Act; updating statutory reference; amending 70 O.S. 2021, Section 1210.508B, as amended by Section 4, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2025, Section 1210.508B), which relates to legislative intent; stating legislative intent regarding a multi-tiered system of supports framework and core literacy instruction; requiring schools to integrate other core subjects into reading, writing, and math; defining term; amending 70 O.S. 2021, Section 1210.508C, as last amended by Section 2, Chapter 297, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.508C), which relates to assessments for reading skills; modifying purpose of screening; directing the Office of Educational Quality and Accountability to evaluate and rank certain number of screening instruments; directing the Commission for Educational Quality and Accountability to approve certain instruments; directing the State Board of Education to select one screening instrument; requiring the instrument to meet certain criteria; removing language providing for the approval of three screening instruments; removing language regarding requirements for a program of reading instruction;

1 directing a reading intervention plan to identify
2 intensity of instruction; prohibiting certain
3 services from occurring during math instruction;
4 expanding students who will be provided certain
5 reading intervention plan; adding member to Student
6 Reading Proficiency Teams; removing language
7 regarding certain notification of parents and legal
8 guardians; directing the State Board of Education, in
9 certain consultation, to annually define and set
10 certain benchmarks for screening instrument results;
11 directing the Office of Educational Quality and
12 Accountability to analyze and report certain tiers;
13 prohibiting reading intervention from being provided
14 solely by digital technology; requiring reading
15 intervention to include certain amount of direct
16 instruction; removing certain exemption for students
17 who demonstrate proficiency on certain screening
18 instrument from programs of reading instruction;
19 modifying language regarding intensive intervention
20 services for certain third-grade students; requiring
21 certain first- and second-grade students to be placed
22 in certain transitional classroom or provided certain
23 targeted intervention instruction; allowing certain
24 first- and second-grade students to be voluntarily
retained with certain written consent; requiring
families of certain first- and second-grade students
to be provided certain tutoring or summer reading
options; directing the State Department of Education
to approve certain tutoring programs; directing the
Department to make certain assessment available to
school districts beginning in certain school year;
requiring school districts to administer certain
assessment to students in certain grade; providing
for certain prior written notification; allowing
written notice to opt out of certain assessment;
exempting certain students who score at certain level
from certain retention requirements; prohibiting
performance on certain assessment from being counted
against certain grading; directing school districts
to use performance data for certain purpose;
modifying type of intervention services to be
provided to certain students; modifying information
to be included in certain notification for parents
and legal guardians; providing for certain
intervention services for certain incoming third-
grade students; requiring third-grade students to
demonstrate sufficient reading skills beginning in

1 certain school year; providing methods for
2 demonstration; requiring retention of certain third-
3 grade students; prohibiting screening instruments
4 from being used for promotion purposes; providing
5 good-cause exemptions to retention; providing good-
6 cause exemption request process; requiring written
7 notification of parents and legal guardians of
8 retained students; subjecting certain students to
9 certain screening and testing upon return to a public
10 school; prohibiting certain receiving school from
11 altering certain third-grade retention requirements
12 for a student who transfers; directing retained
13 students to be provided certain interventions
14 beginning in certain school year; requiring school
15 districts to review certain intervention plans;
16 requiring school districts and the State Department
17 of Education to report certain information; updating
18 statutory language; updating statutory references;
19 amending 70 O.S. 2021, Section 1210.508D, as amended
20 by Section 6, Chapter 411, O.S.L. 2024 (70 O.S. Supp.
21 2025, Section 1210.508D), which relates to
22 appropriated funds designated for the Strong Readers
23 Act; modifying language regarding calculation of
24 certain allocation; providing for calculation of base
literacy allocations; providing purpose of base
literacy allocation; providing for calculation of
supplemental weighted funding; providing purpose of
supplemental weighted funding; requiring school
districts to maintain certain documentation;
providing for promulgation of certain rules; allowing
the State Department of Education to require certain
documentation or provide certain assistance under
certain circumstances; directing a portion of certain
funds to be provided as incentives for school
districts demonstrating certain improvement; removing
certain stipend; amending 70 O.S. 2021, Section
1210.508E, as amended by Section 7, Chapter 411,
O.S.L. 2024 (70 O.S. Supp. 2025, Section 1210.508E),
which relates to summer academy programs; allowing a
teacher to recommend certain tutoring; directing
academy programs to incorporate certain reading
intervention services and be taught by certain
individuals; requiring school districts to provide
certain intervention options to certain students;
requiring summer academies to consist of certain
amount of instructional time; prohibiting summer
academies from including certain instruction models;

1 requiring, rather than allowing, certain intervention
2 to be expanded to certain grade; requiring school
3 districts to report certain information to the State
4 Board of Education; amending 70 O.S. 2021, Section
5 1210.508F, as last amended by Section 3, Chapter 297,
6 O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.508F),
7 which relates to reading competencies for teacher
8 education programs; allowing professional development
9 to include certain components; requiring teacher
10 candidates to study certain negative impacts,
11 identification of certain models, and how to
12 implement certain instruction; requiring certain
13 teacher education programs to be audited for certain
14 compliance; directing noncompliant programs to be
15 placed on certain status and given certain guidance;
16 amending Section 2, Chapter 288, O.S.L. 2023, as
17 amended by Section 9, Chapter 411, O.S.L. 2024 (70
18 O.S. Supp. 2025, Section 1210.508H), which relates to
19 literacy instructional teams; removing pilot program
20 language; directing the State Department of Education
21 to employ literacy coaches who are placed in certain
22 number of regions; providing duties of coaches;
23 providing for priority placement of coaches;
24 requiring coaches to pass certain test; increasing
number of coaches; providing additional criteria for
coaches; providing for assignment of coaches;
exempting a school district that employs certain
coaches from using certain literacy coaches if they
participate in certain coaching improvement
community; modifying criteria for individuals to be
given certain preference; prohibiting certain school
districts that decline certain assistance from being
eligible to receive certain funding; requiring school
districts to have certain staff member at each public
elementary school; directing the Office of
Educational Quality and Accountability, in certain
collaboration, to develop certain teacher training
academies for certified personnel to provide certain
micro-credential; requiring certain teacher training
academies to be held prior to the 2026-2027 school
year; providing certain stipend for receiving an
early literacy micro-credential; providing certain
funding amount for certain public and private
institutions of higher education; creating the Strong
Readers Revolving Fund; specifying sources of fund;
providing for expenditures; providing purpose of
fund; allowing donors to the fund to designate

1 certain recipient; providing for codification; and
2 declaring an emergency.

3
4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.508A,
6 as amended by Section 3, Chapter 411, O.S.L. 2024 (70 O.S. Supp.
7 2025, Section 1210.508A), is amended to read as follows:

8 Section 1210.508A. Sections 1210.508A through ~~1210.508H~~
9 1210.508J of this title shall be known and may be cited as the
10 "Strong Readers Act".

11 SECTION 2. AMENDATORY 70 O.S. 2021, Section 1210.508B,
12 as amended by Section 4, Chapter 411, O.S.L. 2024 (70 O.S. Supp.
13 2025, Section 1210.508B), is amended to read as follows:

14 Section 1210.508B. A. The Legislature finds that it is
15 essential for children in the public schools to read early and well
16 in elementary school. The Legislature further finds that clear and
17 visible goals, assessments to determine the reading level at each
18 elementary school, use of a scientifically based and researched
19 methodology in reading instruction in addition to regular and
20 periodic measurements of elementary school reading improvement, and
21 accountability in each level of the educational system will result
22 in a significant increase in the number of children reading at or
23 above grade level.

1 B. The purpose of the Strong Readers Act is to ensure that
2 progression from one grade to another is determined, in part, upon
3 proficiency in reading, that school district board of education
4 policies facilitate reading instruction and intervention services to
5 address student reading needs, and that each student and his or her
6 parent or legal guardian be informed of that student's reading
7 progress. It is the intent of the Legislature that every student
8 reads at or above grade level by the end of third grade.

9 C. To carry out the purpose of this act, it is the intent of
10 the Legislature that the identification, instruction, and
11 intervention required under the Strong Readers Act be implemented
12 within a multi-tiered system of supports (MTSS) framework that
13 emphasizes strong core literacy instruction for all students and
14 provides increasing levels of instructional intensity based on
15 student need and demonstrated response to instruction.

16 D. It is further the intent of the Legislature that strong core
17 literacy instruction consists of explicit, systematic instruction in
18 foundational reading and writing skills including phonological
19 awareness, decoding, encoding, spelling, sentence-level writing,
20 language development, fluency, vocabulary, and comprehension,
21 recognizing the reciprocal relationship between reading and writing
22 proficiency.

23 E. Each public school district in this state shall ensure that
24 all students receive a well-rounded education that is focused on

1 building deep foundations in reading, writing, and mathematics. The
2 State Board of Education shall ~~encourage~~ require school districts to
3 integrate the teaching of the other curricular areas in the subject
4 matter standards adopted by the Board with the instruction of
5 reading, writing, and mathematics. All teachers of reading in the
6 public schools in this state in kindergarten through third grade
7 shall ~~incorporate into instruction the five elements of reading~~
8 ~~instruction which are phonological awareness, decoding, fluency,~~
9 ~~vocabulary, and comprehension~~ provide systematic and explicit
10 instruction in the five elements of reading, which are phonological
11 awareness, decoding, fluency, vocabulary, and comprehension, using
12 high quality instructional materials grounded in the science of
13 reading, selected from a list of approved materials maintained by
14 the State Board of Education.

15 ~~D.~~ F. It is the intent of the Legislature that beginning with
16 the 2025-2026 school year, school districts and charter schools in
17 this state shall be prohibited from using the three-cueing system
18 model of teaching students to read. For the purposes of this
19 section, the "three-cueing system" means any model of teaching
20 students to read based on meaning, structure, syntax, and visual
21 cues, which may also be known as meaning, structure, and visual
22 (MSV), balanced literacy, or whole language.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1210.508B-1 of Title 70, unless
3 there is created a duplication in numbering, reads as follows:

4 A. As used in the Strong Readers Act:

5 1. "Grade-level targets" means the grade-specific benchmark
6 scores established for the screening instrument selected by the
7 State Board of Education in coordination with the Commission for
8 Educational Quality and Accountability;

9 2. "Highly qualified teacher" means a teacher or provider with
10 appropriate training and demonstrated competency in evidence-based
11 reading intervention;

12 3. "Literacy coach" means an educator with demonstrated
13 expertise in evidence-based literacy instruction who provides job-
14 embedded professional learning, modeling, observation, and feedback
15 to teachers to strengthen core instruction and intervention
16 practices within a multi-tiered system of supports framework. The
17 primary responsibility of a literacy coach is to support educators
18 and administrators in improving instructional practices and
19 schoolwide literacy systems. A literacy coach shall not serve in a
20 supervisory or evaluative capacity to maintain a nonevaluative role
21 that fosters professional trust and growth;

22 4. "Multi-tiered system of supports" or "MTSS" means a
23 framework that provides strong core literacy instruction to all
24

1 students and increasingly intensive levels of instructional support
2 based on student need and demonstrated response to instruction;

3 5. "Reading deficiency" means performance below grade-level
4 targets on a screening or diagnostic assessment indicating that a
5 student is not meeting grade-level expectations in one or more
6 reading skill areas;

7 6. "Reading interventionist" means an educator trained in
8 evidence-based reading instruction who provides supplemental or
9 intensive intervention to students identified with a reading
10 deficiency or significant reading deficiency, aligned to student
11 data and delivered in addition to core instruction;

12 7. "Reading specialist" means an educator who has completed
13 advanced preparation in literacy instruction and assessment and is
14 responsible for designing, delivering, and monitoring targeted and
15 intensive reading intervention services, as well as supporting
16 teachers in addressing reading deficiencies across grade levels. A
17 reading specialist shall have completed a graduate-level specialist
18 degree in reading or literacy and passed the applicable
19 certification examination and shall hold a valid teaching
20 certificate with a reading specialist endorsement;

21 8. "Science of reading" means the body of scientifically based
22 research conducted over several decades and across multiple
23 countries, drawing from multiple disciplines including cognitive
24 psychology, linguistics, neuroscience, and education, that explains

1 how individuals learn to read and write. The science of reading
2 informs instructional practices that are explicit, systematic, and
3 cumulative, and are aligned to the development of phonological
4 awareness, decoding, fluency, vocabulary, comprehension, written
5 expression, and oral language development;

6 9. "Significant reading deficiency" means a reading deficiency
7 that persists despite supplemental intervention and indicates a need
8 for intensive intervention based on student data and response to
9 instruction;

10 10. "Tier 1 - Core Instruction" or "Tier 1" means:

11 a. the evidence-based reading instruction provided to all
12 students as part of the general education program.

13 Tier 1 instruction shall include high-quality,
14 standards-aligned literacy instruction grounded in the
15 science of reading and delivered during the regular
16 instructional day,

17 b. Tier 1 shall include universal screening in
18 kindergarten through third grade and ongoing
19 assessment used to identify students who may require
20 additional instructional support. Tier 1 may also
21 include targeted instructional supports delivered
22 within the core instructional setting to address
23 emerging reading needs, and
24

c. Tier 1 instruction is intended to meet the needs of the majority of students through strong classroom instruction and prevention-focused supports;

11. "Tier 2 - Supplemental Intervention" or "Tier 2" means:

a. targeted reading intervention provided in addition to Tier 1 core instruction for students identified through screening and progress-monitoring data as requiring additional instructional support to meet grade-level reading expectations. Tier 2 intervention shall:

(1) provide additional instructional time beyond Tier 1 core instruction,

(2) be delivered in small-group settings, typically consisting of three to five students, using evidence-based instructional practices aligned with the science of reading,

(3) target specific skill deficits identified through assessment data, and

(4) include regular progress monitoring to determine the effectiveness of the intervention and guide instructional adjustments, and

b. a student shall be designated as receiving Tier 2 supplemental intervention only when the student is

actively participating in scheduled intervention services beyond Tier 1 instruction; and

12. "Tier 3 - Intensive Intervention" or "Tier 3" means:

a. individualized or highly targeted reading intervention provided in addition to Tier 1 core instruction and Tier 2 supplemental intervention for students demonstrating a significant reading deficiency. Tier 3 intervention shall:

- (1) provide substantially increased instructional intensity and frequency beyond Tier 2 supports,
- (2) be delivered in individualized or small group settings, typically consisting of one to three students,
- (3) be guided by diagnostic assessment to address specific reading skill deficits, and
- (4) include frequent progress monitoring to evaluate student response to intervention and guide instructional decision-making, and

b. a student shall be designated as receiving Tier 3 intensive intervention only when the student is actively participating in scheduled intensive intervention services beyond Tier 1 instruction.

B. The State Board of Education shall promulgate rules establishing implementation guidance for each tier defined in

1 paragraphs 10 through 12 of subsection A of this section including
2 expectations related to instructional time, group size,
3 documentation requirements, and progress-monitoring practices
4 necessary to ensure the effective delivery of intervention services.

5 SECTION 4. AMENDATORY 70 O.S. 2021, Section 1210.508C,
6 as last amended by Section 2, Chapter 297, O.S.L. 2025 (70 O.S.
7 Supp. 2025, Section 1210.508C), is amended to read as follows:

8 Section 1210.508C. A. To identify students who have a reading
9 deficiency or characteristics of dyslexia that lead to or cause
10 reading difficulty, each student enrolled in kindergarten and first,
11 second, and third grade in a public school in this state shall be
12 screened at the beginning, middle, and end of each school year for
13 monitoring of progress and for measurement of reading skills
14 ~~including, but not limited to, phonological awareness, decoding,~~
15 ~~fluency, vocabulary, and comprehension. A screening instrument~~
16 ~~approved by the State Board of Education, in consultation with the~~
17 ~~Commission for Educational Quality and Accountability and the~~
18 ~~Secretary of Education, shall.~~ The Office of Educational Quality
19 and Accountability shall evaluate and rank up to three screening
20 instruments, which shall be approved by the Commission for
21 Educational Quality and Accountability. The State Board of
22 Education shall select one screening instrument approved by the
23 Commission to be utilized for the purposes of this section.

1 The selected screening instrument shall meet the following
2 criteria:

3 1. Can assess for phonological awareness, sound-symbol
4 recognition, alphabet knowledge, rapid naming skills, decoding and
5 encoding skills, oral reading accuracy and fluency, vocabulary, and
6 comprehension, as developmentally appropriate;

7 2. Can document the validity and reliability of each
8 assessment;

9 3. Can identify students who are at risk for reading and math
10 deficiency and monitor student progress throughout the school year;

11 4. Can be linked to, and can accurately predict, performance on
12 the Oklahoma School Testing Program;

13 5. Is normed beyond elementary grades;

14 6. Can assess students with disabilities and English language
15 learners;

16 7. Is accompanied by a data management system that provides
17 profiles of each student, class, grade level, and school building.

18 The profiles shall identify the instructional point of need and
19 reading achievement level for each student; and

20 8. Is capable of reporting student-level data to the State
21 Department of Education and the Office of Educational Quality and
22 Accountability.

23 B. In determining which screening instrument to approve and
24 utilize, the State Board of Education, the Commission for

1 Educational Quality and Accountability, and the Secretary State
2 Board of Education shall take into consideration at a minimum the
3 following factors:

4 1. The time required to conduct the screening instrument with
5 the intention of minimizing the impact on instructional time;

6 2. The timeliness in reporting screening instrument results to
7 teachers, administrators, and parents and legal guardians of
8 students; and

9 3. The integration of the screening instrument into reading and
10 math curriculum

11 ~~B. Beginning in the 2025-2026 school year, the State Board of~~
12 ~~Education shall approve no fewer than three screening instruments~~
13 ~~for use at the beginning, middle, and end of the school year for~~
14 ~~monitoring of progress and for measurement of reading skills as~~
15 ~~required in subsection A of this section. The screening instruments~~
16 ~~shall meet the following criteria:~~

17 ~~1. Assess for phonological awareness, decoding, fluency,~~
18 ~~vocabulary, and comprehension;~~

19 ~~2. Document the validity and reliability of each assessment;~~

20 ~~3. Can be used for identifying students who are at risk for~~
21 ~~reading deficiency and progress monitoring throughout the school~~
22 ~~year;~~

23 ~~4. Can be used to assess students with disabilities and English~~
24 ~~language learners; and~~

1 ~~5. Accompanied by a data management system that provides~~
2 ~~profiles of each student, class, grade level, and school building.~~
3 ~~The profiles shall identify each student's instructional point of~~
4 ~~need and reading achievement level. The State Board shall also~~
5 ~~determine other comparable reading assessments for diagnostic~~
6 ~~purposes to be used for students at risk of reading failure; and~~

7 4. The ability to report all reading and math screening results
8 to both the State Department of Education and the Office of
9 Educational Quality and Accountability.

10 C. 1. Exemptions to the screening requirements of this section
11 may be provided to students who have documented evidence that they
12 meet at least one of the following criteria as related to the
13 provision of classroom instruction:

- 14 a. the student participates in the Oklahoma Alternate
15 Assessment Program (OAAP) and is taught using
16 alternate methods,
- 17 b. the student's primary expressive or receptive
18 communication is sign language,
- 19 c. the student's primary form of written or read text is
20 Braille, or
- 21 d. the student's primary expressive or receptive language
22 is not English, the student is identified as an
23 English learner using a state-approved identification
24 assessment, and the student has had less than one (1)

1 school year of instruction in an English-learner
2 program.

3 2. A public school that grants an exemption pursuant to
4 paragraph 1 of this subsection shall provide ongoing evidence of
5 student progression toward English language acquisition with the
6 same frequency as administration of screening assessments. Evidence
7 may include, but not be limited to, student progression toward OAAP
8 reading essential elements, proficiency in sign language and reading
9 comprehension, and proficiency in Braille and reading comprehension.

10 D. 1. Students who are administered a screening instrument
11 pursuant to subsection A of this section and are found not to be
12 meeting grade-level targets shall be provided a ~~program of reading~~
13 ~~instruction designed to enable students to acquire the appropriate~~
14 ~~grade-level reading skills. The program of reading instruction~~
15 ~~shall be based on scientific reading research and align with the~~
16 ~~subject matter standards adopted by the State Board of Education. A~~
17 ~~program of reading instruction shall include:~~

- 18 a. ~~sufficient additional in-school instructional time for~~
19 ~~the acquisition of phonological awareness, decoding,~~
20 ~~fluency, vocabulary, and comprehension,~~
21 b. ~~if necessary and if funding is available, tutorial~~
22 ~~instruction after regular school hours, on Saturdays,~~
23 ~~and during summer; however, such instruction may not~~
24 ~~be counted toward the one-hundred-eighty-day or one-~~

~~thousand-eighty-hour school year required in Section
1-109 of this title,~~

~~e. assessments identified for diagnostic purposes and
periodic monitoring to measure the acquisition of
reading skills including, but not limited to,
phonological awareness, decoding, fluency, vocabulary,
and comprehension, as identified in the student's
program of reading instruction,~~

~~d. high-quality instructional materials grounded in
scientifically based reading research, and~~

~~e. a means of providing every family of a student in
prekindergarten, kindergarten, and first, second, and
third grade access to free online evidence-based
literacy instruction resources to support the
student's literacy development at home intervention
plan, which shall identify the needed intensity of
instruction to remedy the student's specific reading
deficiency as quickly as possible.~~

2. The reading intervention services required by this
subsection shall not occur during math instruction.

3. A student enrolled in kindergarten or first, second, or
third grade who exhibits a ~~deficiency in~~ reading deficiency at any
time based on the screening instrument administered pursuant to
subsection A of this section and any fourth-grade student promoted

1 for good cause pursuant to subsection L of this section shall
2 receive an individual reading intervention plan no later than thirty
3 (30) days after the identification of the ~~deficiency in~~ reading
4 deficiency. The reading intervention plan shall be provided in
5 addition to ~~core~~ Tier 1 reading instruction that is provided to all
6 students. The reading intervention plan shall:

- 7 a. describe the ~~research-based~~ reading intervention
8 services and the needed intensity of instruction the
9 student will receive to remedy the ~~deficiency in~~
10 reading deficiency,
- 11 b. provide explicit and systematic instruction in
12 phonological awareness, decoding, fluency, vocabulary,
13 and comprehension, as applicable,
- 14 c. monitor the reading progress of each student's reading
15 skills throughout the school year and adjust
16 instruction according to the student's needs, and
- 17 d. continue until the student is determined to be meeting
18 grade-level targets in reading based on the screening
19 ~~instruments~~ instrument administered pursuant to
20 subsection A of this section or assessments identified
21 for diagnostic purposes and periodic monitoring
22 ~~pursuant to subparagraph c of paragraph 1 of this~~
23 ~~subsection~~ by the State Board of Education.

1 ~~3.~~ 4. The reading intervention plan for each student identified
2 with a ~~deficiency in~~ reading deficiency shall be developed by a
3 Student Reading Proficiency Team and shall include supplemental
4 instructional services and supports. Each team shall be composed
5 of:

- 6 a. the parent or legal guardian of the student,
- 7 b. the teacher assigned to the student who had
8 responsibility for reading instruction in that
9 academic year,
- 10 c. a teacher who is responsible for reading instruction
11 and is assigned to teach in the next grade level of
12 the student, ~~and~~
- 13 d. a certified reading specialist or interventionist,
14 certified personnel with an early literacy micro-
15 credential, or an individual with advanced training or
16 specialization in literacy instruction, ~~if one is~~
17 available and
- 18 e. the principal, vice principal, or designate.

19 ~~4.~~ 5. ~~A school district shall notify the parent or legal~~
20 ~~guardian of any student in kindergarten or first, second, or third~~
21 ~~grade who exhibits a deficiency in reading at any time based on the~~
22 ~~screening instrument administered pursuant to subsection A of this~~
23 ~~section. The notification shall occur no later than thirty (30)-~~
24 ~~days after the identification of the deficiency in reading~~ The State

Board of Education, in consultation with the Office of Educational Quality and Accountability, shall annually define and set benchmarks for screening instrument results that are predictive of future performance on the state summative assessment to assist in identifying intervention tiers within a reading intervention plan. Annually, the Office of Educational Quality and Accountability shall analyze and report to the State Department of Education the correlation of screening instrument tiers to state summative tiers using predictive modeling and prior year formative and summative testing results.

6. Reading intervention shall not be provided solely by digital technology. Reading intervention shall include a majority of direct instruction from a teacher or reading specialist trained in the science of reading.

E. 1. Every school district shall adopt and implement a district strong readers plan which has had input from school administrators, teachers, and parents and legal guardians, and if possible a reading specialist, interventionist or certified personnel with an early literacy micro-credential, and which shall be submitted electronically to and approved by the State Board of Education. The plan shall be updated annually if changes have been made to the plan. ~~School districts shall not be required to electronically submit the annual updates to the Board if the last plan submitted to the Board was approved and expenditures for the~~

~~program include only expenses relating to individual and small group tutoring, purchase of and training in the use of screening and assessment measures, summer school programs, and Saturday school programs. If any expenditure for the program is deleted or changed or any other type of expenditure for the program is implemented, the school district shall be required to submit the latest annual update to the Board for approval.~~ The district strong readers plan shall include a plan for each site which includes an analysis of the data provided by the Oklahoma School Testing Program and other reading assessments utilized as required in this section, and which outlines how each school site will comply with the provisions of the Strong Readers Act.

2. The State Board of Education shall adopt rules for the implementation and evaluation of the provisions of the Strong Readers Act. The evaluation shall include, but not be limited to, an analysis of the data required in subsection ~~4~~ 5 of this section.

F. 1. ~~Any first-grade, second-grade, or third-grade student who demonstrates proficiency in reading through a grade-level appropriate screening instrument approved pursuant to subsection B of this section shall not require a program of reading instruction or an individual reading intervention plan. After a student has demonstrated proficiency through a screening instrument, the district shall provide notification to the parent or legal guardian of the student that he or she has satisfied the requirements of the~~

1 ~~Strong Readers Act. The district shall continue to monitor the~~
2 ~~student in the next successive grade level to ensure he or she~~
3 ~~maintains proficiency.~~

4 ~~2. Beginning with the 2025-2026 school year, if a third-grade~~
5 ~~student is identified at any point of the academic year as having a~~
6 ~~significant reading deficiency, which shall be defined as not~~
7 ~~meeting grade-level targets on a screening instrument administered~~
8 ~~pursuant to subsection A of this section, the district shall provide~~
9 ~~the student with intensive intervention services for the appropriate~~
10 ~~amount of the instructional day consistent with the individual~~
11 ~~reading intervention plan developed pursuant to paragraph 2 of~~
12 ~~subsection D of this section and as determined by the Student~~
13 ~~Reading Proficiency Team. Intensive intervention services shall~~
14 ~~continue until the student demonstrates proficiency at his or her~~
15 ~~grade level based on a screening instrument administered pursuant to~~
16 ~~subsection A of this section.~~

17 ~~G.~~ Beginning with the 2027-2028 school year:

18 a. if a first-grade student has demonstrated the need for
19 reading intervention services and is not meeting
20 grade-level targets by the end of the first grade:
21 (1) the district shall place the student in a stand-
22 alone transitional second-grade classroom or
23 promote the student to second grade while
24

1 providing targeted Tier 2 or Tier 3 intervention
2 instruction, or

3 (2) the first-grade student may be subject to
4 voluntary retention in first grade with the
5 written consent of the student's parent or legal
6 guardian, and

7 b. if a second-grade student has demonstrated the need
8 for reading intervention services and is not meeting
9 grade-level targets by the end of the second grade:

10 (1) the district shall place the student in a stand-
11 alone transitional third-grade classroom or
12 promote the student to third grade while
13 providing targeted Tier 2 or Tier 3 intervention
14 instruction, or

15 (2) the second-grade student may be subject to
16 voluntary retention in second grade with the
17 written consent of the student's parent or legal
18 guardian.

19 2. If a student is subject to the provisions of paragraph 1 of
20 this subsection, the family of the student shall be provided with
21 the option for the student to attend a summer tutoring program or a
22 summer reading academy. The State Department of Education shall
23 also approve one or two online or workbook-based summer tutoring
24 programs for use by students under this paragraph. School districts

1 shall also provide the parents or legal guardians of the student
2 with a list of summer literacy programs available if a summer
3 academy, as described in Section 1210.508E of this title, is not
4 offered by the school district.

5 3. a. Beginning in the 2027-2028 school year, the State
6 Department of Education shall make available to school
7 districts the statewide third-grade English Language
8 Arts assessment required by Section 1210.508 of this
9 title, and school districts shall administer the
10 assessment to students in second grade. School
11 districts shall provide prior written notification to
12 parents and legal guardians of second-grade students
13 who will be administered the English language arts
14 assessment, and the notification shall include
15 information on how a parent or legal guardian may
16 provide written notice to opt his or her student out
17 of the assessment administration. Second-grade
18 students who score at the proficient level or above on
19 the assessment shall be exempt from the third-grade
20 retention requirements provided in subsection K of
21 this section. A second-grade student's performance on
22 the assessment shall not be counted against him or her
23 in classroom grading.

1 b. School districts shall use student performance data on
2 the assessment administered pursuant to this paragraph
3 to inform intervention decisions.

4 G. Each school district shall annually report in an electronic
5 format to the State Department of Education, the Office of
6 Educational Quality and Accountability, and the Secretary of
7 Education the number of students in kindergarten through third grade
8 per grade level who exhibit grade-level reading proficiency, the
9 number of students per grade level who received ~~intensive~~ Tier 2 or
10 Tier 3 intervention services pursuant to ~~paragraph 2 of subsection F~~
11 D of this section, the number of students per grade level who
12 attended a summer academy as provided for in Section 1210.508E of
13 this title, the number of students per grade level who exhibited
14 improved reading proficiency after completion of ~~intensive~~ reading
15 intervention services, and the number of students per grade level
16 who are still in need of ~~intensive~~ reading intervention services.
17 The State Department of Education shall publicly report the
18 aggregate and district-specific numbers submitted pursuant to this
19 subsection on its website and shall provide electronic copies of the
20 report to the Governor, Secretary of Education, President Pro
21 Tempore of the Senate, Speaker of the House of Representatives, and
22 to the respective chairs of the committees with responsibility for
23 common education policy in each legislative chamber.

1 H. The parent or legal guardian of any student who is found to
2 have a reading deficiency ~~and is not meeting grade-level reading~~
3 ~~targets~~ and has been provided a ~~program of reading instruction~~
4 intervention plan as provided for in paragraph 1 of subsection D of
5 this section shall be notified in writing ~~of~~ no later than thirty
6 (30) days after the identification of the reading deficiency. The
7 notification shall be accompanied by the individual reading
8 intervention plan developed pursuant to paragraph 3 of subsection D
9 of this section. The notification shall include the following:

10 1. That the student has been identified as having a ~~substantial~~
11 ~~deficiency in reading~~ deficiency;

12 2. A description of the current services that are provided to
13 the student pursuant to subsection D of this section;

14 3. A description of the proposed ~~intensive~~ reading intervention
15 services and supports that will be provided to the student that are
16 designed to remediate the identified area of reading deficiency as
17 provided for in ~~paragraph 2 of~~ subsection ~~F~~ D of this section;

18 4. That the parent or legal guardian shall be informed in
19 writing of the progress of the student toward grade-level reading at
20 least every thirty (30) days and provided with strategies to assist
21 at home;

22 5. That if the child's reading deficiency is not remediated by
23 the end of third grade, the child shall not be promoted to fourth
24 grade unless a good-cause exemption is met;

1 6. That a student who is promoted to the fourth grade for good
2 cause shall receive supplemental intensive Tier 2 or Tier 3
3 intervention services unless he or she is a student who meets the
4 definition of a student with the most significant cognitive
5 disabilities;

6 ~~5. Strategies~~ 7. A description of the specific skill deficits
7 of the child and strategies for parents or legal guardians to use in
8 helping their child succeed in reading proficiency; and

9 ~~6. 8.~~ The grade-level performance scores of the student; and

10 9. That while the statewide English Language Arts assessment is
11 the initial determinate for promotion, students may be provided with
12 an alternative reading assessment option that is recommended by the
13 Commission for Educational Quality and Accountability and approved
14 by the State Board of Education to demonstrate sufficient reading
15 skills for promotion to fourth grade.

16 I. No student may be assigned to a grade level based solely on
17 age or other factors that constitute social promotion.

18 J. 1. Any incoming third-grade student identified with a
19 reading deficiency shall be provided Tier 2 or Tier 3 intervention
20 services to remedy his or her specific reading deficiency.
21 Intervention services shall include effective instructional
22 strategies to accelerate student progress and be delivered by a
23 highly qualified teacher.

1 2. Public school districts shall review individual reading
2 intervention plans for all incoming third-grade students identified
3 with a reading deficiency. The review shall address additional
4 supports and services the student will receive. The supports and
5 services shall include reading instruction and reading intervention
6 services and supports to correct any identified area of reading
7 deficiency.

8 K. 1. Beginning with the 2027-2028 school year, third-grade
9 students shall demonstrate sufficient reading skills for promotion
10 to fourth grade. Students shall be provided the following options
11 to demonstrate sufficient reading skills for promotion to fourth
12 grade:

- 13 a. scoring above the below basic level on the third-grade
14 statewide English Language Arts assessment, or
15 b. earning an acceptable score on an alternative
16 standardized reading assessment as recommended by the
17 Commission for Educational Quality and Accountability
18 and approved by the State Board of Education.

19 2. If the third-grade student cannot demonstrate sufficient
20 reading skills on one of the two options described in paragraph 1 of
21 this subsection and does not qualify for a good-cause exemption, the
22 student shall be retained in the third grade for the next school
23 year. Screening instruments described in this section shall not be
24 used for promotion purposes.

1 L. The school district board of education may only exempt
2 students from mandatory third-grade retention, as provided in
3 subsection K of this section, for good cause. A student who is
4 promoted to fourth grade with a good-cause exemption, except for
5 students who meet the definition of a student with the most
6 significant cognitive disabilities, shall continue to receive
7 reading intervention services that includes specific reading
8 strategies prescribed in the student's individual reading
9 intervention plan until the deficiency is remedied. The school
10 district shall assist schools and teachers with the implementation
11 of reading strategies that research has shown to be successful in
12 improving reading among students with reading difficulties. Good-
13 cause exemptions shall be limited to the following:

14 1. Students with disabilities whose individualized education
15 program (IEP) indicates that participation in the statewide student
16 assessment system is not appropriate, consistent with state law;

17 2. Students identified as English language learners who have
18 had less than two (2) consecutive school years of instruction in an
19 English-learner program;

20 3. Students with disabilities who participate in the statewide
21 English Language Arts assessment and who have an IEP that reflects
22 that the student has received reading intervention for more than two
23 (2) school years but still demonstrates a reading deficiency, or who
24

1 was previously retained for one (1) year in kindergarten, first,
2 second, or third grade; and

3 4. Students who have received reading intervention services for
4 two (2) or more years but still demonstrate a reading deficiency,
5 and who were previously retained in kindergarten, first, second, or
6 third grade for a total of two (2) years. No student shall be
7 retained twice in third grade.

8 M. Requests to exempt students from the mandatory third-grade
9 retention requirement, as provided in subsection K of this section,
10 using one of the good-cause exemptions, as described in subsection L
11 of this section, shall be made consistent with the following:

12 1. Documentation shall be submitted from the student's teacher
13 to the school principal indicating that the promotion of the student
14 is appropriate. Such documentation shall consist only of the good-
15 cause exemption being requested and the existing reading
16 intervention plan or IEP;

17 2. The school principal shall review and discuss the
18 recommendation for exemption with the student's teacher. If the
19 principal determines that the student meets one of the good-cause
20 exemptions based on the discussion and documentation provided, the
21 school principal shall make such recommendation in writing to the
22 school district superintendent. The school district superintendent
23 shall accept or reject the school principal's recommendation in
24 writing; and

1 3. The parents or legal guardians of a third-grade student
2 eligible for a good-cause exemption may choose that the student be
3 retained for one (1) year even if the school district superintendent
4 accepts a recommendation for a good-cause exemption pursuant to this
5 subsection.

6 N. The school district shall provide written notification to
7 the parent or legal guardian of any student who is retained. Such
8 notification shall state that his or her child has not met the
9 reading level required for promotion to the fourth grade, the
10 reasons the child is not eligible for a good-cause exemption, and
11 that his or her child will be retained in third grade. The
12 notification shall include a description of the proposed reading
13 intervention services and the intensity of instruction that will be
14 provided to the child to remedy the identified areas of reading
15 deficiency in the retained year.

16 O. 1. Students that are withdrawn from public school to bypass
17 third-grade retention requirements, as outlined in subsection K of
18 this section, shall be subject to screening upon return to the
19 public school system to determine appropriate grade level upon re-
20 entry.

21 2. If a third-grade student subject to retention as provided
22 for in subsection K of this section transfers to a public school
23 district, a charter school, or a virtual charter school, the
24

1 requirements to retain the student in third grade shall not be
2 altered by the receiving school.

3 P. Beginning with the 2027-2028 school year, students retained
4 under the provisions of subsection K of this section shall be
5 provided Tier 2 or Tier 3 reading interventions to remedy the
6 student's specific reading deficiency. The reading intervention
7 services shall include effective instructional strategies to
8 accelerate student progress. Each school district shall conduct a
9 review of student reading intervention plans for all students
10 retained in third grade. The review shall address additional
11 supports and services needed to remedy the identified areas of
12 reading deficiency and ensure the following are provided to retained
13 students:

14 1. A teacher with appropriate training and demonstrated
15 competency in evidence-based reading intervention. School districts
16 with only one third-grade teacher are exempt from the requirements
17 of this paragraph;

18 2. Tier 2 or Tier 3 reading intervention services and supports
19 to correct the identified areas of reading deficiency;

20 3. One of the following intervention supports:

21 a. before-, during-, or after-school supplemental
22 research-based reading intervention delivered by a
23 teacher or tutor with specialized reading training, or
24

1 b. summer academy programs designed to ensure that
2 participating students successfully complete grade-
3 level competencies in reading to enhance next-grade
4 readiness; and

5 4. A "Read at Home" plan as created by the Office of
6 Educational Quality and Accountability shall be outlined in a
7 parental or legal guardian notification, including participation in
8 parent or legal guardian training workshops or regular parent-guided
9 or legal guardian-guided home reading activities which are aligned
10 to scientifically based reading research.

11 Q. 1. Each school district board of education shall annually
12 publish on the school website and report electronically to the State
13 Department of Education, the Office of Educational Quality and
14 Accountability, and the Secretary of Education by September 1 of
15 each year the following information on the prior school year:

16 a. the policies and procedures adopted by the school
17 district board of education to implement the
18 provisions of this section. The information submitted
19 shall include expenditures related to implementing the
20 provisions of this section, the number of staff
21 implementing the provisions of this section, and
22 average daily classroom time devoted to implementing
23 the provisions of this section,

- b. by grade, the number and percentage of all students in kindergarten through third grade who ~~did not meet grade-level targets~~ demonstrated a reading deficiency based on a screening instrument administered pursuant to subsection A of this section,
- c. by grade, the number and percentage of all students in kindergarten through third grade who have been enrolled in the district for fewer than two (2) years,
- d. by grade, the number and percentage of all students in kindergarten through third grade who were retained,
- e. by grade, the number and percentage of students in kindergarten through third grade who demonstrated grade-level proficiency based on a screening instrument administered pursuant to subsection A of this section, ~~and~~
- ~~e.~~
- f. by grade, the number and percentage of students in kindergarten through third grade who are on an individualized education program (IEP) in accordance with the Individuals with Disabilities Education Act (IDEA) and who demonstrated grade-level proficiency based on a screening instrument administered pursuant to subsection A of this section or an alternative assessment prescribed by the student's IEP,

- 1 g. the number and percentage of all students in third
2 grade who demonstrated sufficient reading skills for
3 promotion to the next grade on the alternative reading
4 assessment,
- 5 h. the number and percentage of students in third grade
6 who were promoted to fourth grade for good cause and
7 the applicable good-cause exemption specified in
8 subsection L of this section, and
- 9 i. the performance of fourth-grade students on the
10 statewide English Language Arts assessment who were
11 promoted with a good-cause exemption in the previous
12 school year.

13 2. The State Department of Education shall establish a uniform
14 format for school districts to report the information required in
15 this subsection. The format shall be developed with input from
16 school districts and shall be provided not later than ninety (90)
17 days prior to the annual due date. The Department shall annually
18 compile the information required, along with state-level summary
19 information, and electronically report the information to the
20 public, the Governor, the Secretary of Education, the President Pro
21 Tempore of the Senate, and the Speaker of the House of
22 Representatives and shall post such information on its website.

23 3. If a school district fails to report screening instrument
24 data to the State Department of Education and the Office of

1 Educational Quality and Accountability as required by this
2 subsection, such district shall not be eligible to receive funds
3 pursuant to Section 1210.508D of this title.

4 ~~K.~~ R. The State Department of Education shall provide technical
5 assistance as needed to aid school districts in administering the
6 provisions of the Strong Readers Act.

7 ~~L.~~ S. On or before January 31 of each year, the State
8 Department of Education shall electronically submit to the Governor,
9 the President Pro Tempore of the Senate, the Speaker of the House of
10 Representatives, and members of the committees with responsibility
11 over common education in both houses of the Legislature a Strong
12 Readers Report which shall include, but is not limited to, trend
13 data detailing three (3) years of data, disaggregated by student
14 subgroups to include economically disadvantaged, major racial or
15 ethnic groups, students with disabilities, and English language
16 learners, as appropriate for the following:

17 1. The statewide aggregate number and percentage of students in
18 kindergarten through third grade determined to be at risk for
19 reading difficulties compared to the total number of students
20 enrolled in each grade;

21 2. The statewide aggregate number and percentage of students in
22 kindergarten who continue to be at risk for reading difficulties as
23 determined by the year-end administration of the screening
24 instrument required in subsection A of this section;

1 3. The statewide aggregate number and percentage of students in
2 kindergarten through third grade who have successfully completed
3 their program of reading instruction and are reading on grade level
4 as determined by the results of a screening ~~instruments~~ instrument
5 administered pursuant to subsection A of this section;

6 4. The statewide aggregate and district-specific number and
7 percentage of students that meet or do not meet grade-level targets
8 for reading based on a screening ~~instruments~~ instrument administered
9 pursuant to subsection A of this section;

10 5. The statewide aggregate and district-specific number and
11 percentage of students that were retained in third grade;

12 6. The amount of funds received by each district for
13 implementation of the Strong Readers Act;

14 ~~6.~~ 7. An evaluation and narrative interpretation of the report
15 data analyzing the impact of the Strong Readers Act on students'
16 ability to read at grade level;

17 ~~7.~~ 8. The type of reading instruction practices and methods
18 currently being used by school districts in the state;

19 ~~8.~~ 9. Socioeconomic information, access to reading resources
20 outside of school, and screening for and identification of learning
21 disabilities for students not reading at the appropriate grade level
22 in kindergarten and first through third grade;

23 ~~9.~~ 10. By grade level, the types of intensive intervention
24 efforts being conducted by school districts for students who are not

1 on an IEP and who are not reading at the appropriate grade level and
2 for students who are on an IEP and who are not reading at the
3 appropriate grade level; and

4 ~~10.~~ 11. Any recommendations for improvements or amendments to
5 the Strong Readers Act.

6 The State Department of Education may contract with an
7 independent entity for the reporting and analysis requirements of
8 this subsection.

9 ~~M.~~ T. Copies of the results of the screening ~~instruments~~
10 instrument administered pursuant to subsection A of this section
11 shall be made a part of the permanent record of each student.

12 SECTION 5. AMENDATORY 70 O.S. 2021, Section 1210.508D,
13 as amended by Section 6, Chapter 411, O.S.L. 2024 (70 O.S. Supp.
14 2025, Section 1210.508D), is amended to read as follows:

15 Section 1210.508D. A. Contingent on the provision of
16 appropriated funds designated for the Strong Readers Act, ~~school~~
17 ~~districts may be allocated monies for each enrolled kindergarten~~
18 ~~student or first, second, and third grade student of the current~~
19 ~~school year who is found to be in need of remediation or intensive~~
20 ~~intervention services in reading. The allocation shall be~~
21 ~~distributed to each school district upon approval of the strong~~
22 ~~readers plan for the school district by the State Board of Education~~
23 ~~and the submittal of a child-count report to the State Department of~~
24 ~~Education that details the number of students identified as needing~~

~~remediation or intensive intervention services in reading. To determine a per student allocation amount, the total amount of funds available for allocation each year shall be divided by the total number of students in the state identified as in need of remediation or intensive intervention services in reading as provided for in Section 1210.508C of this title. Each school district shall be allocated an amount equal to the per student allocation amount multiplied by the number of identified students enrolled in the school district.~~

~~B. Beginning with the 2022-2023 school year, districts receiving more than Two Thousand Five Hundred Dollars (\$2,500.00) pursuant to subsection A of this section shall spend no less than ten percent (10%) to provide professional development for teachers teaching prekindergarten through grade five. The professional development shall include training in the science of reading including how students learn to read; training in providing explicit and systematic instruction in phonological awareness, decoding, fluency, vocabulary, and comprehension; implementing reading strategies that research has shown to be successful in improving reading among students with reading difficulties; and instructional materials required for implementation.~~

~~C. By June 30, 2022, the Department shall approve and publish a list of professional development programs that are evidence-based and directly address the cognitive science of how students learn to~~

~~read for which districts are permitted to use the funds received~~
~~under this section~~ each school district shall receive a base
literacy allocation calculated on a per-student basis for each
student enrolled in kindergarten and grades one through three, as
reported in the October 1 enrollment counts of the current school
year.

The base literacy allocation shall support the prevention of
reading deficiencies and the implementation of strong core literacy
instruction within Tier 1 of a multi-tiered system of supports
(MTSS) framework, including, but not limited to:

1. Evidence-based core literacy instruction and instructional
materials aligned with the science of reading;

2. Universal screening and diagnostic assessment necessary to
identify students at risk for reading deficiencies;

3. Progress monitoring and data use to inform instructional
decisions;

4. Family literacy resources and engagement activities aligned
with classroom instruction; and

5. Professional development and instructional coaching
necessary to implement the district strong readers plan.

The State Board of Education shall allocate not less than forty
percent (40%) of funds appropriated for purposes of this section to
support the base literacy allocation described in this subsection.

1 B. 1. In addition to the base literacy allocation provided
2 pursuant to subsection A of this section, school districts shall
3 receive supplemental weighted funding for students identified
4 through screening and progress-monitoring data as requiring
5 additional reading intervention services within a multi-tiered
6 system of supports (MTSS) framework.

7 2. Supplemental weighted funding shall support intervention
8 services beyond Tier 1 core instruction and shall be distributed
9 according to the following categories:

10 a. Tier 2 - Supplemental Intervention Weight: Students
11 identified as requiring targeted reading intervention
12 beyond core instruction shall generate supplemental
13 funding to support additional instructional time,
14 reduced group size, and evidence-based intervention,
15 and

16 b. Tier 3 - Intensive Intervention Weight: Students
17 identified as demonstrating a significant reading
18 deficiency requiring intensive, individualized, or
19 highly targeted intervention shall generate
20 supplemental funding reflecting the increased
21 instructional intensity required at this level.

22 3. Supplemental funding received pursuant to this subsection
23 shall be used exclusively for intervention services beyond Tier 1
24 core instruction, including:

- a. additional instructional time devoted to reading intervention,
- b. reduced instructional group sizes necessary to deliver intensive instruction,
- c. specialized instructional materials and intervention programs aligned with the science of reading,
- d. compensation for educators delivering intervention services, and
- e. professional development necessary to ensure educators providing intervention services have extensive training in the science of reading.

4. The State Board of Education shall allocate not less than thirty percent (30%) of funds appropriated for purposes of this section to support supplemental weighted intervention funding described in this subsection and shall promulgate rules establishing the methodology for calculating weights, documentation requirements, and procedures for verifying intervention participation.

5. Students shall be counted for purposes of supplemental weighted funding pursuant to this subsection only when the school district has documented and electronically reported to the State Department of Education that the student is receiving intervention services consistent with the level of instructional intensity required at the applicable tier.

6. School districts shall maintain documentation demonstrating:

- a. identification of the student through an approved universal screening assessment and supporting diagnostic or progress-monitoring data,
- b. implementation of an intervention plan specifying the instructional approach, frequency, duration, and group size of intervention services, and
- c. ongoing progress monitoring used to determine the effectiveness of the intervention and inform instructional adjustments.

7. Students shall not generate supplemental weighted funding unless intervention services are provided beyond Tier 1 core instruction. The State Department of Education may review intervention documentation and program implementation to verify eligibility for supplemental weighted funding distributed pursuant to this section.

8. The State Board of Education shall promulgate rules establishing reasonable expectations for the proportion of students receiving supplemental and intensive intervention services within a multi-tiered system of supports framework.

9. When the reported percentage of students receiving Tier 2 or Tier 3 intervention services significantly exceeds expected ranges, the State Department of Education may require additional documentation or provide technical assistance to ensure intervention

1 services are implemented with the instructional intensity required
2 at each tier.

3 C. 1. In order to encourage continuous improvement in student
4 reading outcomes and to support the sustainability of effective
5 intervention services, a portion of funds appropriated pursuant to
6 this section shall be used to provide incentives to school districts
7 demonstrating measurable improvement in student reading performance.

8 2. Incentive funding may include recognition of:

9 a. students who demonstrate sufficient progress to exit
10 Tier 3 intensive intervention,

11 b. students who demonstrate sufficient progress to exit
12 Tier 2 supplemental intervention, and

13 c. schools or districts demonstrating measurable
14 reductions in the number or percentage of students
15 requiring supplemental or intensive intervention.

16 3. The State Board of Education shall allocate up to thirty
17 percent (30%) of funds appropriated for purposes of this section for
18 literacy improvement incentives and shall promulgate rules
19 establishing criteria for determining eligibility for such
20 incentives.

21 ~~D. If a teacher attends and completes a professional~~
22 ~~development institute in elementary reading approved by the~~
23 ~~Commission for Educational Quality and Accountability during the~~
24 ~~summer or when school is not in session, the teacher may receive a~~

~~stipend equal to the amount of the cost for a substitute teacher,
based on the amount of funds allocated.~~

SECTION 6. AMENDATORY 70 O.S. 2021, Section 1210.508E,
as amended by Section 7, Chapter 411, O.S.L. 2024 (70 O.S. Supp.
2025, Section 1210.508E), is amended to read as follows:

Section 1210.508E. A. If a teacher determines that a student
in kindergarten or first through third grade is not reading at grade
level by the end of the second quarter of the school year, the
parent or legal guardian of the student shall be notified of:

1. The reading level of the student;
2. The program of reading instruction for the student as
required pursuant to the Strong Readers Act; and
3. The potential need for the student to participate in a
summer academy or other program designed to assist the student in
attaining grade-level reading skills.

B. A teacher who determines a student in kindergarten or first
through third grade is not meeting grade-level targets for reading
may, after consultation with the parent or legal guardian of the
student, recommend that the student participate in and complete a
transitional instructional setting, before-, during-, or after-
school supplemental tutoring, a summer academy program, or other
program.

C. Summer academy programs shall be designed to ensure that
participating students successfully complete grade-level

1 competencies in reading to enhance next-grade readiness. A summer
2 academy reading program shall be a program that incorporates ~~the~~
3 ~~content of a scientifically research-based professional development~~
4 ~~program administered by the Commission for Educational Quality and~~
5 ~~Accountability or a scientifically research-based reading program~~
6 ~~administered by the State Board of Education~~ reading intervention
7 services and is taught by ~~teachers who have successfully completed~~
8 ~~professional development in the reading program or who are~~ a highly
9 qualified teacher, a certified as reading specialists specialist,
10 interventionist, or certified personnel with an early literacy
11 micro-credential. The program shall provide explicit, systematic,
12 sequential, and cumulative reading intervention services and
13 supports to correct students' identified areas of reading
14 deficiency.

15 D. School districts may approve an option for students who are
16 unable to attend a summer academy. The optional program may
17 include, but is not limited to, an approved private provider of
18 instruction, approved computer- or Internet-based instruction, or an
19 approved program of reading instruction monitored by the parent or
20 legal guardian. School districts shall not be required to pay for
21 the optional program but shall clearly communicate to the parent or
22 legal guardian the expectations of the program and any costs that
23 may be involved.

1 E. ~~Subject to the availability of funds, beginning~~ 1. School
2 districts shall provide at least one of the following Tier 2 or Tier
3 3 reading intervention options to all third-grade students scoring
4 at the below basic achievement level on the third-grade statewide
5 English Language Arts assessment, as well as students who have
6 completed kindergarten through second grade and are at risk of
7 reading deficiency as determined by a screening instrument
8 administered pursuant to subsection A of Section 1210.508C of this
9 title:

- 10 a. before-, during-, or after-school supplemental
11 research-based reading intervention delivered by a
12 teacher or tutor with specialized reading training, or
13 b. summer academy programs designed to ensure that
14 participating students successfully complete grade-
15 level competencies in reading to enhance next-grade
16 readiness.

17 2. Summer reading academies shall include, at a minimum,
18 seventy (70) hours of instructional time in reading and shall not
19 use balanced literacy and whole language models, such as three-
20 cueing as defined in subsection F of Section 1210.508B of this
21 title.

22 F. Beginning one (1) year after implementation of this section,
23 the requirements of subsection ~~B~~ E of this section ~~may~~ shall be
24 expanded to apply to students in fourth grade. Each year

1 thereafter, the requirements ~~may~~ shall be expanded by one grade
2 level until the requirements apply to third-grade students through
3 eighth-grade students. ~~Summer academy programs~~ The reading
4 intervention options outlined in subsection E of this section shall
5 be designed for each grade level. Nothing in this section shall
6 prevent the State Board of Education or a school district board of
7 education from utilizing private, local, or federal funds to
8 implement this section.

9 ~~F.~~ G. The State Board of Education shall adopt rules to
10 implement the provisions of this section ~~which shall include~~
11 ~~requirements for instructional time for summer academy programs,~~
12 ~~teacher qualifications, and evaluation of student achievement as a~~
13 ~~result of summer academy programs or other optional programs~~ and
14 shall require school districts to report statewide assessment data
15 aggregated to the classroom level, on the availability of reading
16 intervention options, the number of students participating in each
17 option, and evaluation of student achievement as a result of each
18 provided option.

19 SECTION 7. AMENDATORY 70 O.S. 2021, Section 1210.508F,
20 as last amended by Section 3, Chapter 297, O.S.L. 2025 (70 O.S.
21 Supp. 2025, Section 1210.508F), is amended to read as follows:

22 Section 1210.508F. A. The Commission for Educational Quality
23 and Accountability shall ensure that the reading competencies for
24

1 elementary teachers are included in the competencies for special
2 education teachers.

3 B. The Commission for Educational Quality and Accountability in
4 collaboration with the Oklahoma State Regents for Higher Education
5 shall ensure that all teachers ~~and adjuncts~~ of early childhood
6 education, elementary education, and special education are provided
7 quality training in intervention, instruction, and remediation
8 strategies in the science of reading to provide explicit and
9 systematic instruction in phonological awareness, decoding, fluency,
10 vocabulary, and comprehension and implement reading strategies that
11 research has shown to be successful in improving reading among
12 students with reading difficulties. Professional development may
13 include effective use of data, progress monitoring, and intervention
14 planning as it fits into a multi-tiered system of supports (MTSS)
15 framework. In addition, quality education for prospective teachers
16 shall be provided in research-based instructional strategies for
17 instruction, assessment, and intervention for literacy development
18 for all students including advanced readers, typically developing
19 readers, and struggling readers who are coping with a range of
20 challenges including, but not limited to, English language learners,
21 students at risk for reading deficiencies, and ~~learners~~ students
22 with handicapping conditions and learning disabilities, including
23 dyslexia. Quality training shall include guidance from professional
24 resources such as the Report of the National Reading Panel, Response

1 to Intervention guidelines, and professional organizations such as
2 the Council for Exceptional Children, International Dyslexia
3 Association, International Literacy Association, National Council of
4 Teachers of English, and National Association for the Education of
5 Young Children.

6 C. All institutions within The Oklahoma State System of Higher
7 Education that offer elementary, early childhood education, or
8 special education programs approved by the Commission for
9 Educational Quality and Accountability shall incorporate into those
10 programs the requirement that teacher candidates study the five
11 elements of reading instruction which are phonological awareness,
12 decoding, fluency, vocabulary, and comprehension and study methods
13 based on the science of reading. Teacher candidates shall study
14 strategies including, but not limited to, instruction that is
15 explicitly taught, sequenced, multimodal (reading, writing,
16 speaking, listening, hands-on, etc.), multidisciplinary, and
17 reflective to adapt for individual learners. Additionally, teacher
18 candidates shall study the negative impacts of balanced literacy and
19 whole language models, including three-cueing practices. They shall
20 further study how to identify balanced literacy and whole language
21 models including three-cueing practices in curriculum, and
22 subsequently, learn how to implement reading instruction using high-
23 quality instructional materials grounded in the science of reading
24

1 which do not include balanced literacy and whole language models
2 such as three-cueing.

3 D. Each teacher education program approved by the Commission
4 for Educational Quality and Accountability shall be audited by the
5 Commission to ensure teacher candidates are receiving quality
6 training in the science of reading. The Commission shall place the
7 accreditation of any noncompliant teacher education program on
8 probationary status and provide guidance for exiting probationary
9 status.

10 E. Effective July 1, 2025, any person seeking initial
11 certification in a special education, early childhood education, or
12 elementary education program in this state shall be required to
13 successfully complete a comprehensive reading instruction assessment
14 approved by the Commission for Educational Quality and
15 Accountability as a condition for certification. The assessment
16 shall be aligned to scientifically based reading research and
17 evaluate the certification applicant's knowledge and understanding
18 of the five elements of reading instruction which are phonological
19 awareness, decoding, fluency, vocabulary, and comprehension.

20 ~~E.~~ F. Candidates applying for adjunct positions, an alternative
21 placement teaching certificate, or an emergency teaching certificate
22 in elementary education shall complete instruction in the science of
23 reading as determined by the Commission for Educational Quality and
24 Accountability and the State Board of Education.

SECTION 8. AMENDATORY Section 2, Chapter 288, O.S.L.

2023, as amended by Section 9, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2025, Section 1210.508H), is amended to read as follows:

Section 1210.508H. A. Beginning with the ~~2023-2024~~ 2026-2027 school year, the State Department of Education shall establish and maintain a ~~three-year pilot~~ program to employ ~~a~~ literacy ~~instructional team~~ coaches to support school districts in implementation of the requirements of Section 1210.508C of this title. The Department shall provide technical assistance for literacy instruction, dyslexia, and related disorders, and serve as a primary source of information and support for schools, administrators, and teachers in addressing the needs of students struggling with literacy, reading deficiencies, or dyslexia, ~~and related disorders~~ or identified with the risk characteristics associated with dyslexia.

B. The Department shall employ ~~a~~ literacy ~~instructional team with team members~~ coaches who are placed ~~regionally~~ in six major geographic regions across the state. The literacy ~~instructional teams~~ coaches shall assist schools, administrators, educators, and general education and special education teachers in recognizing educational needs to improve literacy outcomes for all students including those with reading deficiencies or dyslexia or identified with the risk characteristics associated with dyslexia. Priority shall be given to the lowest performing schools on the end-of-year

1 English Language Arts assessment or the statewide reading screener
2 as approved by the State Department of Education. The role of the
3 literacy ~~instructional team~~ coaches shall also include increasing
4 professional awareness and instructional competencies to meet the
5 educational needs of all students including those with reading
6 deficiencies or dyslexia or identified with risk characteristics
7 associated with dyslexia. The Department shall prioritize supports
8 and interventions including enrollment in reading trainings and
9 professional development for schools which have the highest
10 percentage of students who do not demonstrate sufficient reading
11 skills as established by the State Board of Education.

12 C. Literacy coaches shall provide systems and instructional
13 support to schools to strengthen the implementation of evidence-
14 based literacy instruction and intervention and to build the
15 capacity of educators and school leaders to sustain effective
16 literacy practices. Literacy coaches shall serve in a supportive,
17 nonevaluative capacity and shall not conduct personnel evaluations
18 or impose personnel actions.

19 D. Literacy ~~instructional team members~~ coaches employed by the
20 Department shall be required to pass Oklahoma's Foundations of
21 Reading test and shall have training in:

22 1. The science of how students learn to read including
23 phonological awareness, phonics, fluency, vocabulary, comprehension,
24 writing, and language;

2. Foundation of multisensory, explicit, systematic, and structured reading instruction;

3. Identification of and the use of appropriate interventions, accommodations, assistive technology, and teaching techniques for ~~struggling~~ students with dysgraphia, dyslexia, a related reading disorder, or reading deficiency;

4. The requirements of the Strong Readers Act;

5. Special education laws and procedures; and

6. Appropriate interventions, accommodations, and assistive technology supports for students with dyslexia or a related disorder.

~~D. E.~~ The literacy ~~instructional team members~~ coaches employed by the Department shall report to the Program Director for Literacy at the Department and ~~have:~~

~~1. A~~ shall consist of a minimum of five twenty regional literacy ~~leads~~ coaches, at least one who shall be designated by the Department as a dyslexia specialist to provide school districts with support and resources that are necessary to assist students with dyslexia. The Department shall give preference to educators applying for regional literacy ~~lead~~ coaches who:

1. a. hold a master's degree in education with three (3) years of documented successful experience teaching reading as evidenced by reading assessment scores, or

b. hold a bachelor's degree with five (5) years of documented successful experience teaching reading as evidenced by reading assessment scores with a minimum of three (3) years of literacy experience at the state, district, or school level;

2. Have a valid certificate to teach issued by the State Board of Education;

3. Have experience delivering professional development specific to literacy instruction, mentoring and coaching classroom teachers, leading others in a collaborative process, and analyzing and using student performance data for instructional purposes;

~~have~~ 4. Have an endorsement or certification as a certified structured literacy dyslexia specialist or certified academic language therapist_{ti}

~~b. are~~

5. Are knowledgeable of multitiered systems of support_{ti} and

~~c. have~~

6. Have been trained in the identification of and ~~intervention~~ for dyslexia and related disorders including best practice the use of appropriate interventions and treatment models for, accommodations, and teaching techniques for students with dysgraphia, dyslexia~~;~~ and

~~2. A minimum of ten literacy specialists,~~ a related reading disorder, or reading deficiency.

1 F. 1. The State Department of Education shall assign literacy
2 coaches to school districts that are identified by the Department
3 based on the number and percentage of students scoring in the below
4 basic performance level on the statewide third-grade assessment
5 administered pursuant to Section 1210.508C of this title or the
6 statewide reading screener in kindergarten through second grade.

7 2. If a district already employs instructional coaches, that
8 district shall not be required to utilize Department-assigned
9 literacy coaches so long as the local instructional coaches
10 participate in a Department-led coaching improvement community
11 aligned to the science of reading and national coaching best
12 practices.

13 G. Literacy coaches assigned to school districts pursuant to
14 the provisions of this section shall:

15 1. Provide technical support to teachers responsible for
16 reading instruction and reading specialists and interventionists;

17 2. Assist administrators, educators, and reading specialists
18 and interventionists in implementing evidence-based literacy
19 practices;

20 3. Design and conduct professional development to meet the
21 needs of teachers and administrators in the area of literacy;

22 4. Provide clear, practical, timely, and candid written and
23 oral feedback to teachers and administrators based on coaching
24 cycles; and

1 5. Meet regularly with teachers, reading specialists and
2 interventionists, and administrators to review literacy data and
3 make recommendations for adjustments in instructional practices.

4 H. The Department shall give preference to educators applying
5 for literacy specialist to become a literacy coach who:

6 a. have

7 1. Have training in the science of reading;

8 b. are

9 2. Are knowledgeable of ~~multitiered~~ multi-tiered systems of
10 support, and;

11 c. have

12 3. Have been trained in the identification of and ~~intervention~~
13 for dyslexia and related disorders including best practice the use
14 of appropriate interventions and treatment models for,
15 accommodations, and teaching techniques for students with
16 dysgraphia, dyslexia, a related reading disorder, or reading
17 deficiency; and

18 4. Have previously retired and were a highly effective
19 elementary school teacher based on student reading scores on the
20 statewide English Language Arts assessment or teacher evaluations.

21 I. If a school district that is prioritized for supports and
22 interventions pursuant to this section declines to accept assistance
23 from a literacy coach, the district shall not be eligible to receive
24 funds pursuant to Section 1210.508D of this title.

1 J. 1. School districts shall have a minimum of one reading
2 specialist, interventionist, or teacher with an early literacy
3 micro-credential for each public elementary school.

4 2. For school districts that do not currently employ or
5 contract with a reading specialist or interventionist, the Office of
6 Educational Quality and Accountability, in collaboration with the
7 State Department of Education, shall work with public or private
8 institutions of higher education within this state to develop
9 teacher training academies for certified personnel to obtain an
10 early literacy micro-credential. The academies shall provide a
11 competency-based professional learning micro-credential after
12 completing an intensive teacher training academy held at Oklahoma-
13 based institutions of higher education.

14 3. The teacher training academies developed pursuant to
15 paragraph 2 of this subsection may include in-person instruction,
16 synchronous online, or hybrid options. The intensive academy shall
17 be focused on MTSS, the science of reading, and standards alignment
18 for early literacy instruction in kindergarten through third grade.
19 Districts shall select at least one member of certified school
20 personnel per school, with priority given to districts without a
21 current full- or part-time reading specialist or interventionist,
22 per year to attend the teacher training academies. Such individuals
23 may be any certified school personnel who will work with students in
24 kindergarten through third grade.

1 4. The Office of Educational Quality and Accountability shall
2 set program criteria for the micro-credential course and vet higher
3 education programs seeking to issue the credential to Oklahoma
4 educators. The Commission for Educational Quality and
5 Accountability shall approve higher education institutions allowed
6 to issue an early literacy micro-credential. Both public and
7 private higher education institutions may apply. The first teacher
8 training academy shall be held prior to the 2026-2027 school year.

9 5. Instructors for teacher training academies shall possess
10 relevant field experience including demonstrated recent practice in
11 the field.

12 6. For each member of certified school personnel who will work
13 with grades kindergarten through three who receives an early
14 literacy micro-credential pursuant to the provisions of this
15 subsection, the State Department of Education shall provide:

- 16 a. a stipend of Three Thousand Dollars (\$3,000.00) to the
17 certified personnel who receives the early literacy
18 micro-credential, and
19 b. One Thousand Five Hundred Dollars (\$1,500.00) to the
20 public or private higher education institution
21 approved by the Commission for Educational Quality and
22 Accountability to issue the micro-credential.

23 ~~E.~~ K. The State Department of Education shall electronically
24 submit a report to the Governor, the President Pro Tempore of the

1 Senate, and the Speaker of the House of Representatives by December
2 31, 2026, that includes an evaluation of the pilot program by school
3 districts, data on whether the program had an impact on increasing
4 the number of students who demonstrate proficiency in reading, and
5 recommendations for changes to the Strong Readers Act.

6 SECTION 9. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1210.508J of Title 70, unless
8 there is created a duplication in numbering, reads as follows:

9 A. There is hereby created in the State Treasury a revolving
10 fund for the State Department of Education to be designated the
11 "Strong Readers Revolving Fund". The fund shall be a continuing
12 fund, not subject to fiscal year limitations, and shall consist of
13 all monies received by the State Department of Education from
14 private businesses, nonprofit organizations, and federally
15 recognized Indian tribes or nations. All monies accruing to the
16 credit of the fund are hereby appropriated and may be budgeted and
17 expended by the State Department of Education for the purpose of
18 improving reading outcomes in accordance with the Strong Readers Act
19 or in accordance with other programs supporting this act.
20 Expenditures from the fund shall be made upon warrants issued by the
21 State Treasurer against claims filed as prescribed by law with the
22 Director of the Office of Management and Enterprise Services for
23 approval and payment.

1 B. Donors to the Strong Readers Revolving Fund shall designate
2 a specific school, school district, or region to receive their
3 donation. The State Department of Education shall distribute monies
4 from the Strong Readers Revolving Fund in strict compliance with
5 donor designations required by this subsection.

6 C. Monies in the Strong Readers Revolving Fund may be expended
7 for implementation support services, teacher training, data
8 integration, evaluation, reporting, micro-credential stipends and
9 program fees, and professional learning, to support statewide MTSS
10 implementation goals.

11 SECTION 10. It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

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